APWU Pre-Convention Workshop Labor Law Fundamentals

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Topics for Today

Part I	The Postal Service and Federal Labor Law
Part II	The National Labor Relations Board
Part III	Employer Violations of the Act
Part IV	The Duty of Fair Representation
Part V	Communications with the Board
Part VI	Suggestions on How to Avoid DFR Charges

PART I

The Postal Service and Federal Labor Law

The Postal Service & Federal Labor Law

- Unlike other federal agencies, the Postal Service is covered under the National Labor Relations Act. 39 U.S.C. § 410(b)(1).

- The Postal Service is also covered by OSHA.

- Like other federal employees, postal workers are covered by some parts of civil service laws, including the prohibition on striking (5 U.S.C. § 7311) and the Hatch Act (5 U.S.C. § 7321 et. seq).

Labor Law in the Postal Reorganization Act

- INTEREST ARBITRATION: If the Union and the Postal Service do not settle a collective bargaining agreement, the PRA requires a panel of arbitrators decide the terms of the contract. 39 U.S.C. § 1207(c)(1)

- The Postal Reorganization Act forbids requiring postal workers to pay union dues as a requirement of employment. 39 U.S.C. § 1209(c)

- HOWEVER, the PRA does permit a limited window for quitting the union.



PART II

The National Labor Relations Board

What is the NLRB?

The National Labor Relations Board (NLRB) is an independent federal agency that investigates and enforces the National Labor Relations Act (NLRA).

The NLRA is the main law that governs collective bargaining for the private sector and the Postal Service.

Created by Congress in 1935, the NLRB ensures that fair labor practices are followed in companies, industries, employers, and unions.

What is the NLRB?

The NLRB can:

- Certify or decertify a union
- Investigate charges against an employer or a labor organization
- Encourage parties to resolve cases through settlement
- Decide cases in a hearing before an NLRB Administrative Law judge, who hears cases regarding unfair labor practices
- Enforce orders

The Board:

Lauren M. McFerran, Chairman
John F. Ring
Marvin E. Kaplan
Gwynne A. Wilcox
David M. Prouty

The Board has five Members and primarily acts as a quasi-judicial body in deciding cases on the basis of formal records in administrative proceedings. Board Members are appointed by the President to 5-year terms, with Senate consent, the term of one Member expiring each year.



The General Counsel:



Jennifer A. Abruzzo,
NLRB General Counsel

The General Counsel is the prosecutor for the Board. The General Counsel's office is separate and independent of the Board.

The General Counsel

- The General Counsel is appointed by the President to a 4-year term and is approved by the Senate.
- The General Counsel is responsible for:

The investigation and prosecution of unfair labor practice cases

The general supervision of the NLRB field offices in the processing of cases

Regional Offices

- The National Labor Relations Board has 26 regional offices.
- The Regional Offices consists of a Regional Director and Board Agents, Field Examiners, and/or Field Attorneys.
- The Region conducts elections and investigates charges of unfair labor practices.

The NLRB Process



Filing an Unfair Labor Practice Charge

ULP forms are available at www.nlrb.gov or at the Regional Office near you.

Language alleging the ULP can be one sentence—no need to write a thorough statement of the allegation. You can amend your ULP charge later if necessary.

Once you file your ULP charge, you become the "Charging Party" and the Postal Service becomes the "Respondent."

You may also include a position statement laying out any pertinent facts or law.

Deadline for Filing a Charge

A charge must be filed within six months of the facts underlying the allegations.

Board Investigation of Charge

The Regional Director will assign a board agent to investigate the ULP charge. Generally, you will hear from the Region within a week of when you filed your charge. The investigator will request the union's evidence before doing anything else.

It is highly recommended that you have your evidence organized and ready to submit before filing the charge.

Timely respond to the requests of the investigator. The agent will also ask for you to provide an affidavit.

Board Investigation of Charge

Prepare witness testimony before the affidavit. You will normally not be allowed to sit with a witness when the investigator takes the witness's affidavit.

Tell witnesses to be firm with the investigator if their affidavits mischaracterize their testimony.

After the affidavit, follow up and ask the investigator if he or she needs additional evidence.

Board Investigation of Charge

Stay in touch with the investigator so that before the Regional Director makes his decision you have an informal opportunity to respond to any defenses raised by the Postal Service.

Determination

After an investigation, the investigator will present her findings to the Regional Director who will decide whether or not there is merit.

If the Regional Director finds that there is not merit, the investigator will offer you two options:

1. Withdraw the charge without prejudice. **Usually best option**.
2. Take a short-form or long-form dismissal.

Deferral of NLRB Charges

In some instances, the region will defer a charge to the arbitration process even if it finds that there is arguably merit that an unfair labor practice has occurred.

There are different types of deferral:

Collyer deferral:

- When the Board determines that although a charge may have merit, the issue is covered under the terms of the collective bargaining agreement and the employer agrees to present the issue to an arbitrator.

Dubo deferral:

- When a party files a charge, but it has already filed a grievance regarding the same issue.

Settlement of ULP Charges

1. **Non-Board Settlements**. A settlement between the Union and the Postal Service, or the Charging Party and the APWU. The Region will dismiss the charge but may reinstate if one of the parties violates the settlement.

2. **Informal Settlement.** A settlement between the NLRB and the Postal Service or APWU. If the Postal Service violates the settlement, the Region will issue a Complaint and proceed to hearing.

3. **Formal Settlement.** A settlement between the NLRB and the Postal Service or APWU. If the Postal Service violates the settlement, the Region can enforce the settlement without arguing the merits of the case.

Complaint

If the Region finds merit to the charge and does not settle the case with Postal Service, it will issue a formal Complaint and set the case before an administrative law judge.

At hearing, the General Counsel will prosecute the case on behalf or against the APWU.

The Administrative Law Judge will issue a statement of facts and conclusions of law, which the Board will then either affirm in full or modify.

PART III

Employer Violations of the Act

Section 8(a)(5) of the National Labor Relations Act

It is unlawful for an employer to refuse to bargain collectively with employee representatives.

Section 8(d) of the National Labor Relations Act defines collective bargaining:

"For the purposes of this section, to bargain collectively is the performance of the mutual obligation of the employer and the representative of the employees to meet at reasonable times and confer in good faith with respect to wages, hours, and other terms and conditions of employment, or the negotiation of an agreement or any question arising thereunder, and the execution of a written contract incorporating any agreement reached if requested by either party, but such obligation does not compel either party to agree to a proposal or require the making of a concession[.]"

Example: refusing to provide or delaying the provision of information requests or refusing to bargain with the union over subcontracting decisions.

ULPs - Information Requests

The Postal Service is required to provide information if it relevant to the APWU role as a bargaining representative.

The standard for relevance is low. Information about unit employees is presumptively relevant. If "information has some bearing on the issue between the parties," it must be supplied.

U.S. Postal Service, 289 NLRB 942 (1988), enf'd, 888 F.2d 1568 (11th Cir. 1989) (emphasis added), citing Pfizer, Inc., 268 NLRB 916, 918 (1984), enf'd, 763 F.2d 887 (7th Cir. 1985); Conrock Co., 263 NLRB 1293, 1294 (1982), enf'd, 118 LRRM 2968 (9th Cir. 1984) ("information of even probable or potential relevance to the union's duties must be disclosed.").

ULPs - Information Requests

It is a violation to both refuse to provide relevant information and to unreasonably delay providing information.

The Postal Service may state that information is confidential and ask to enter into a Non-Disclosure Agreement.

NLRB Consent Orders

- The NLRB enforces its orders in federal court.
- When orders are violated, the NLRB may pursue civil contempt in federal court.
- In several parts of the country, contempt proceedings have led to federal court consent orders requiring the Postal Service to cease and desist from failing to provide information or unduly delaying in providing information.
- Consent orders have also imposed tracking, training, and notice posting requirements and fine schedules.

Section 7 of the National Labor Relations Act

"Sec. 7. [§ 157.] Employees shall have the right to self-organization, to form, join, or assist labor organizations, to bargain collectively through representatives of their own choosing, and to engage in other concerted activities for the purpose of collective bargaining or other mutual aid or protection, and shall also have the right to refrain from any or all of such activities…"

PART IV

The Duty of Fair Representation

Duty of Fair Representation Standard

"A breach of the statutory duty of fair representation occurs only when a union's conduct toward a member of the collective bargaining unit is **arbitrary, discriminatory, or in bad faith**. " *Vaca v. Sipes*, 386 U.S. 171, 190 (1967).

"Though we accept the proposition that a union may not arbitrarily ignore a meritorious grievance or process it in perfunctory fashion, we do not agree that the individual employee has an absolute right to have his grievance taken to arbitration regardless of the provisions of the applicable collective bargaining agreement." *Id.* at 191.

DFR Violations…

…emerge when a union that is the exclusive representative of a bargaining unit acts in ways that are:

- Arbitrary
- Discriminatory
- Bad faith

Arbitrary

Union conduct is arbitrary when there is no reason behind its decision.

- A union may refuse to process a grievance or handle the grievance in a particular manner for a multitude of reasons, but **it may not do so without reason.** Griffin v. Auto Workers, 469 F.2d 181 (4th Cir. 1972)

- The question is whether a Union's behavior is "so far outside '**a wide range of reasonableness**' . . . as to be irrational." Air Line Pilots Ass'n v. O'Neill, 499 U.S. 65, 67 (1991); see also Roadway Express, Inc., 355 NLRB No. 23, slip op. at 6 fn. 22 (2010).

Discriminatory

- The decision is based on some characteristic of the grievant that has nothing to do with the grievance.

- The most common accusation of discrimination in a DFR charge is that a **non-member was treated differently** because they were a non-member.

- Key Question: would you reach the same decision on the same facts if this were someone else?

Bad Faith

Allowing improper motives and factors to shape your decision.

Examples include:

- ✓ seeking revenge for political opposition
- ✓ decisions that benefit one's own career
- ✓ making misrepresentations
- ✓ acting deceitfully

Obligation to Process Grievances

A union is <u>not</u> obligated to process every grievance. So long as you:

- ✓ investigate the matter fully;
- ✓ follow the National Agreement; and
- ✓ consider the interests of the bargaining unit as a whole;

the Board, and the courts, will defer to your judgment, but you **should document and record your work**.

How vs. What

The Board, and the courts, are more concerned with the *how* than with the *what*.

How did you arrive at your final decision.

Not what your final decision was.

Prior Administration Directives

The former General Counsel directed Regions to prosecute unions if they lose track of, misplace, or otherwise forget about a grievance UNLESS the union can prove that it has an "established, reasonable procedure[s] or system[s] in place to track grievances." GC Memo 19-01; *see also* GC Memo 19-05.

Prior Administration Practices

- Regions were prosecuting unions for not timely communicating with grievants.
  - This includes failing to communicate decisions about grievances (presumably meaning whether the grievance has been withdrawn, the status of arbitration, settlement, etc.).
- Regions were also prosecuting unions for not responding to requests for information from members.

Current Administration Practices

Recission of prior administration directives.

PART V

Communications with the Board

Responding to a DFR Charge

- **Do NOT** ignore NLRB charges, even if you believe they are frivolous.
- Respond promptly to Board agents and be sure to observe deadlines given for requests for evidence.
- If for whatever reason you need more time to submit evidence, ask for an extension.
- Keep a written record of your conversations with Board agents.

Responding to a DFR Charge

- If the charge addresses just the National, or both the Local and the National, contact Charlie Cash, APWU Director of Industrial Relations.

- Note: charges are often improperly filed against the wrong party.

Charges and Differences Between Local and National

Charges against the Local are not charges against the National APWU.

SEC. 6 RESPONSIBILITY OF CHARTERED SUBORDINATE BODIES

(c) **Each chartered subordinate body shall be fully autonomous**. Each subordinate local or area local is entitled to title and possession of local assets and funds to which it is entitled by law and by this Constitution, except to the extent of its obligation to pay per capita tax to the APWU as provided in this Constitution.

Responding to a DFR Charge

- Often Board agents will ask for an affidavit immediately. Although there are situations where cooperation is advisable, you are not required to give an affidavit unless the Region issues a subpoena.

Responding to a DFR Charge

- If a Charged Party fails to respond to a Board agent's request for evidence, the Board agent may make a determination based on the evidence s/he has from the Charging Party.

- This could result in a complaint being issued.

- A Board agent may also issue subpoenas before proceeding to a complaint.

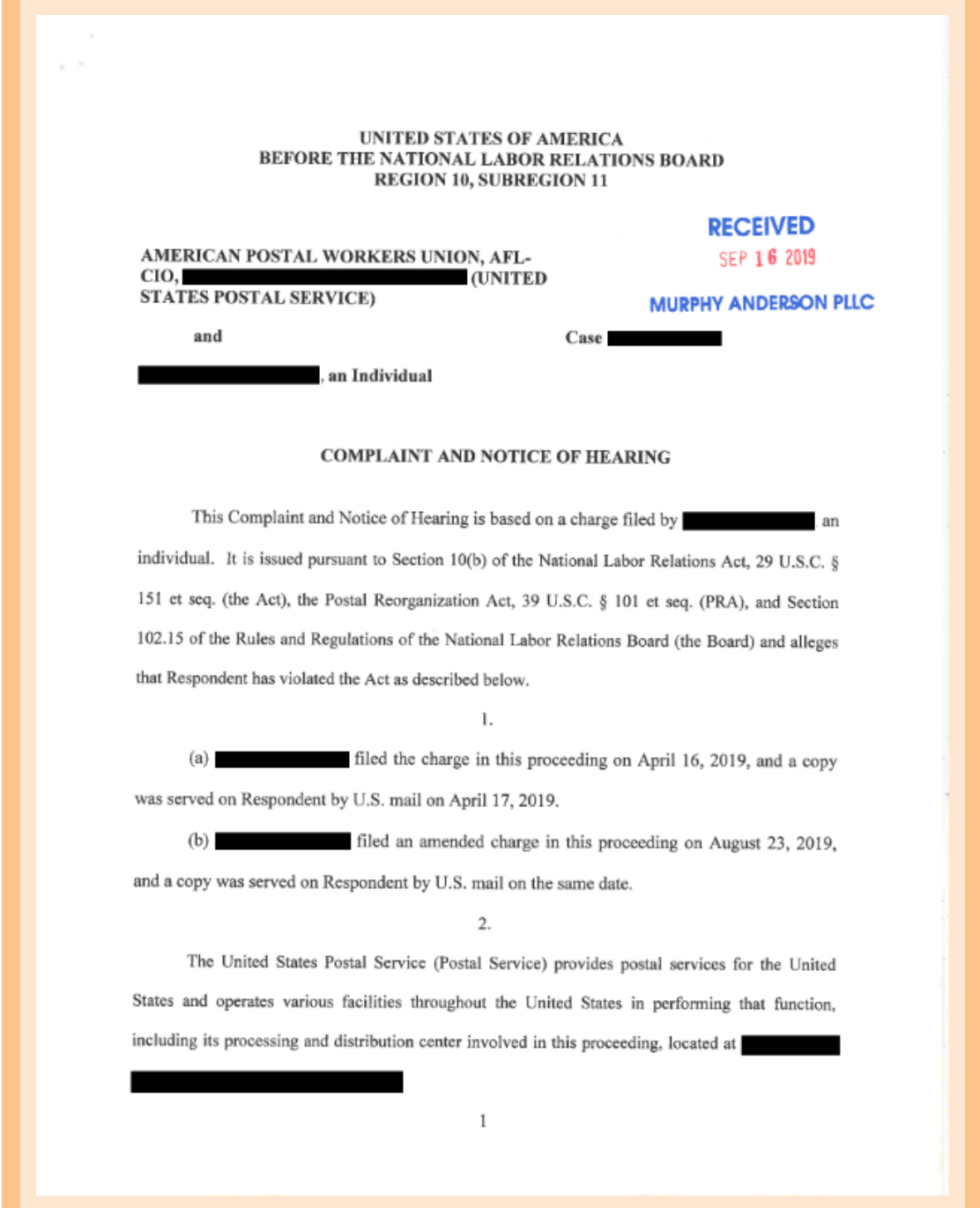
E-Filing

As of October 2019, the General Counsel requires that "all affidavits, correspondence, position statements, documentary or other evidence in connection with unfair labor practice or representation cases processed in Regional offices be submitted through the Agency's electronic filing (e-filing) system."

GC Memo 20-01.

The e-filing system can be accessed on the Board's website www.nlrb.gov under the "E-Filing" tab.

Sample Complaint & Notice of Hearing



UNITED STATES OF AMERICA
BEFORE THE NATIONAL LABOR RELATIONS BOARD
REGION 10, SUBREGION 11

RECEIVED
SEP 16 2019
MURPHY ANDERSON PLLC

AMERICAN POSTAL WORKERS UNION, AFL-CIO, [redacted] (UNITED STATES POSTAL SERVICE)

and

Case [redacted]

[redacted], an Individual

COMPLAINT AND NOTICE OF HEARING

This Complaint and Notice of Hearing is based on a charge filed by [redacted] an individual. It is issued pursuant to Section 10(b) of the National Labor Relations Act, 29 U.S.C. § 151 et seq. (the Act), the Postal Reorganization Act, 39 U.S.C. § 101 et seq. (PRA), and Section 102.15 of the Rules and Regulations of the National Labor Relations Board (the Board) and alleges that Respondent has violated the Act as described below.

1.

(a) [redacted] filed the charge in this proceeding on April 16, 2019, and a copy was served on Respondent by U.S. mail on April 17, 2019.

(b) [redacted] filed an amended charge in this proceeding on August 23, 2019, and a copy was served on Respondent by U.S. mail on the same date.

2.

The United States Postal Service (Postal Service) provides postal services for the United States and operates various facilities throughout the United States in performing that function, including its processing and distribution center involved in this proceeding, located at [redacted]

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Sample Complaint & Notice of Hearing

10.

About January 19, 2019, and February 23, 2019, Respondent, by [redacted] during union membership meetings, intentionally misrepresented to [redacted] and other Unit employees the status of the grievance described above in paragraph 9.

11.

Since about January 19, 2019, Respondent, by [redacted], failed to keep [redacted] informed as to the status of the grievance described above in paragraph 9.

12.

Respondent's conduct described above in paragraph 11 was perfunctory.

13.

By engaging in the conduct described above in paragraphs 10, 11, and 12, in connection with its representative status described above in paragraphs 6 through 8, Respondent has failed to represent [redacted] for reasons that are arbitrary, discriminatory, or in bad faith and has breached the fiduciary duty it owes to this employee and to the Unit.

14.

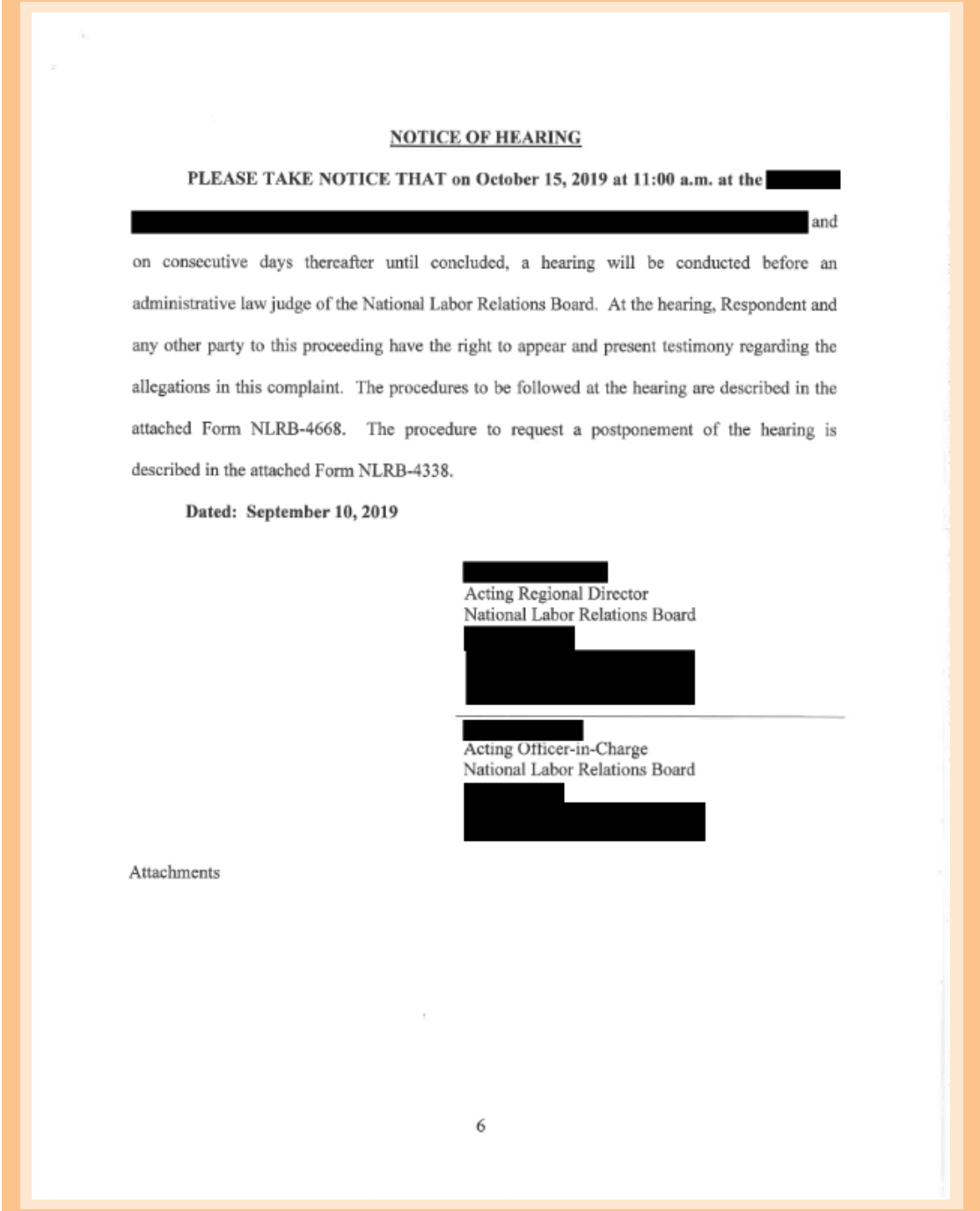
By the conduct described above in paragraphs 10 through 13, Respondent has been restraining and coercing employees in the exercise of the rights guaranteed in Section 7 of the Act in violation of Section 8(b)(1)(A) of the Act and within the meaning of the PRA.

ANSWER REQUIREMENT

Respondent is notified that, pursuant to Sections 102.20 and 102.21 of the Board's Rules and Regulations, it must file an answer to the complaint. The answer must be **received by this office on or before September 24, 2019, or postmarked on or before September 23, 2019.** Respondent should file an original and four copies of the answer with this office and serve a

copy of the answer on each of the other parties. An answer may also be filed electronically through the Agency's website. To file electronically, go to www.nlrb.gov, click on **E-File Documents,** enter the NLRB Case Number, and follow the detailed instructions. The responsibility for the receipt and usability of the answer rests exclusively upon the sender. Unless notification on the Agency's website informs users that the Agency's E-Filing system is officially determined to be in technical failure because it is unable to receive documents for a continuous period of more than 2 hours after 12:00 noon (Eastern Time) on the due date for filing, a failure to timely file the answer will not be excused on the basis that the transmission could not be accomplished because the Agency's website was off-line or unavailable for some other reason. The Board's Rules and Regulations require that an answer be signed by counsel or non-attorney representative for represented parties or by the party if not represented. See Section 102.21. If the answer being filed electronically is a pdf document containing the required signature, no paper copies of the answer need to be transmitted to the Regional Office. However, if the electronic version of an answer to a complaint is not a pdf file containing the required signature, then the E-filing rules require that such answer containing the required signature continue to be submitted to the Regional Office by traditional means within three (3) business days after the date of electronic filing. Service of the answer on each of the other parties must still be accomplished by means allowed under the Board's Rules and Regulations. The answer may not be filed by facsimile transmission. If no answer is filed, or if an answer is filed untimely, the Board may find, pursuant to a Motion for Default Judgment, that the allegations in the complaint are true.

Sample Complaint & Notice of Hearing



NOTICE OF HEARING

PLEASE TAKE NOTICE THAT on October 15, 2019 at 11:00 a.m. at the [redacted]

[redacted] and on consecutive days thereafter until concluded, a hearing will be conducted before an administrative law judge of the National Labor Relations Board. At the hearing, Respondent and any other party to this proceeding have the right to appear and present testimony regarding the allegations in this complaint. The procedures to be followed at the hearing are described in the attached Form NLRB-4668. The procedure to request a postponement of the hearing is described in the attached Form NLRB-4338.

Dated: September 10, 2019

[redacted]
Acting Regional Director
National Labor Relations Board
[redacted]

[redacted]
Acting Officer-in-Charge
National Labor Relations Board
[redacted]

Attachments

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Responding to a Complaint

If the Board issues a complaint, the Charged Party has **14 days** from the date of service to respond with an Answer.

An Answer should respond to **each paragraph** in the Complaint.

Affirmative Defenses

Responding to a Complaint

If no Answer is filed, the allegations in the complaint are admitted as true, and the Board may pursue a **DEFAULT JUDGMENT**.

Default Judgment

If the General Counsel prevails on a motion for default judgment, s/he will be able to establish liability without a hearing.

A motion for default judgment may also address remedy/compliance issues.

If an Answer is filed in response to a motion for default judgment, the Board will seek an explanation for the late filing.

Union Liability

In addition to proving that a union breached its duty, under existing law, the GC also must prove the employee "would have prevailed" if the union had not failed to properly process the grievance.

If the GC proves that, the union is liable for any "increase in damages" caused by its misconduct.

The union will be liable to make the employee(s) whole for the "full amount he or she would have received had the grievance been lawfully processed."

Consequences of Breaching the Duty of Fair Representation

- Time and effort you and your fellow officers and staff expend in defending the charge.
- Potential back pay and benefits to affected workers.
- Potential attorneys' fees.
- Division and distraction.
- Harmful publicity.
- A notice posting.

PART VI

Suggestions on How to Avoid DFR Charges

How to Avoid DFR Charges

Document!

In deciding whether to file, drop, or settle a grievance, **document your reasoning**. If you discuss your reasoning with others, *e.g.*, NBAs or Local officers, it will be hard to find that the action was arbitrary, that is, without reason.

How to Avoid DFR Charges

Communicate!

1. Advise grievants of the reasons for settling or dropping a grievance.
2. Respond to inquires about the status of grievances and document those communications.

How to Avoid DFR Charges

Don't Discriminate!

Treat members and non-members the same in filing and processing grievances. The contract covers everyone in the bargaining unit. **Do not discriminate against non-members**.

How to Avoid DFR Charges

Don't Get Political!

Avoid political considerations in decisions. For example, if the charging party can show that Local decisions looked like they favored officers or disfavored political opponents, it will amount to a prima facie case, requiring the Local to respond to the Region with evidence and affidavits.

How to Avoid DFR Charges

Verify!

Verify that you have correct contact information for grievants.

Thank you!